BRENDAN NGEHSI NEWANFORBI
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Plaintiff, Pro Se

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EASTERN DISTRICT OF CALIFORNIA
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UNITED STATES DISTRICT COURT

EASTERN DISTRICT OF CALIFORNIA

BRENDAN NGEHSI NEWANFORBI, Plaintiff, v. AGENT A. DERRICK #6910, Parole Agent, California Department of Corrections and Rehabilitation, in his individual capacity; KATIE PALACIOS, Director, HOPE Program (Stockton, California), in her individual capacity; AGENT G. NOGUCHI #7284, Supervising Parole Agent, California Department of Corrections and Rehabilitation, in his individual capacity, Defendants.	Case No.: 2:26-cv-00004-DJC-JDP(PS) **PLAINTIFF'S OPPOSITION TO DEFENDANT KATIE PALACIOS' NOTICE OF MOTION AND MOTION TO DISMISS PLAINTIFF'S FIRST AMENDED COMPLAINT; MEMORANDUM OF POINTS AND AUTHORITIES IN SUPPORT THEREOF** Date: May 28, 2026 Time: 10:00 a.m. Courtroom: 9, 13th Floor Judge: Hon. Jeremy D. Peterson Filed: April 7, 2026

I. INTRODUCTION

Defendant Katie Palacios moves to dismiss the First Amended Complaint ("FAC") on three grounds: (1) that she is a private actor not subject to § 1983; (2) that Plaintiff fails to plead

protected speech or causation under the First Amendment; and (3) that Plaintiff's substantive due process claim is duplicative. All three arguments fail as a matter of law.

Palacios was the Director of a mandatory state parole program who jointly exercised governmental authority with CDCR parole agents, made recommendations that determined Plaintiff's parole status, co-authored documents that prolonged Plaintiff's confinement to supervision, characterized Plaintiff's constitutionally protected expression as "disruptive," labeled him a "ringleader" in official reports, and jointly revoked a standard grace period that cost Plaintiff his employment. She is not a bystander. Under controlling Ninth Circuit precedent, she is a state actor—and the FAC pleads more than enough to reach discovery.

Defendant's motion repeatedly mischaracterizes the FAC by asserting the absence of allegations that are expressly pleaded in paragraphs 13–15, 24–25, 29, 35–36, and 44–46. The Court can verify this directly by comparing the motion to the four corners of the complaint.

The standard on a motion to dismiss is notice pleading, not fact-finding. Dismissal is appropriate only where the complaint fails to plead sufficient factual matter, accepted as true, to state a claim that is plausible on its face. Ashcroft v. Iqbal, 556 U.S. 662, 678 (2009). Pro se complaints are entitled to liberal construction. Haines v. Kerner, 404 U.S. 519, 521 (1972). The FAC is detailed, internally consistent, and legally sufficient. The Court should deny the motion in its entirety.

II. LEGAL STANDARD

A Rule 12(b)(6) motion is confined to the four corners of the complaint. Lee v. City of Los Angeles, 250 F.3d 668, 688 (9th Cir. 2001). To survive, a complaint must contain "sufficient factual matter, accepted as true, to 'state a claim to relief that is plausible on its face.'" Iqbal, 556 U.S. at 678 (quoting Bell Atl. Corp. v. Twombly, 550 U.S. 544, 570 (2007)). "A claim has facial

plausibility when the plaintiff pleads factual content that allows the court to draw the reasonable inference that the defendant is liable for the misconduct alleged." Id. In evaluating plausibility, courts "accept all factual allegations in the complaint as true and construe the pleadings in the light most favorable to the nonmoving party." Knievel v. ESPN, 393 F.3d 1068, 1072 (9th Cir. 2005).

In civil rights cases, courts must "construe pro se pleadings liberally" and "afford the petitioner the benefit of any doubt." Hebbe v. Pliler, 627 F.3d 338, 342 (9th Cir. 2010). Before dismissing a pro se complaint, a district court must ordinarily provide notice of deficiencies and an opportunity to amend unless amendment would be futile. Ferdik v. Bonzelet, 963 F.2d 1258, 1261 (9th Cir. 1992).

III. ARGUMENT

A. PALACIOS IS A STATE ACTOR UNDER THE JOINT ACTION AND GOVERNMENT NEXUS TESTS.

Palacios argues she is a purely private party not subject to § 1983. This argument ignores the detailed factual allegations of the FAC, which—accepted as true—compel the conclusion that she acted under color of state law at every relevant step.

1. The Joint Action Test Is Satisfied.

Under the joint action test, a private actor becomes a state actor when the state "has so far insinuated itself into a position of interdependence with [the private actor] that [the private actor] must be recognized as a joint participant in the challenged activity." Burton v. Wilmington Parking Auth., 365 U.S. 715, 725 (1961); Franklin v. Fox, 312 F.3d 423, 445 (9th Cir. 2002). A private party acts under color of law when it is a "willful participant in joint action with the State

or its agents." Dennis v. Sparks, 449 U.S. 24, 27 (1980). Moreover, personal participation under § 1983 may be shown through direct involvement, setting in motion a series of acts by others, or knowingly refusing to terminate a course of unconstitutional conduct. Johnson v. Duffy, 588 F.2d 740, 743–44 (9th Cir. 1978).

The FAC alleges precisely this pattern. Palacios and Agent Derrick jointly conferred and jointly decided to revoke Plaintiff's standard 10-minute grace period—a parole-compliance mechanism—forcing Plaintiff to choose between lawful employment and parole compliance. (FAC ¶¶ 24–25.) Palacios and Derrick jointly denied Plaintiff's request for employment accommodation. (FAC ¶ 25.) Palacios provided input for the November 2025 Discharge Review Report that recommended continued parole retention—a formal CDCR document with direct legal consequences for Plaintiff's liberty. (FAC ¶¶ 36–37.) Palacios attended and participated in the CTM at which Plaintiff complained of retaliation. (FAC ¶¶ 28–32.) Palacios communicated directly with parole agents regarding Plaintiff's compliance and made recommendations affecting his parole status. (FAC ¶ 10.)

This is not the picture of a private therapy program merely providing space for court-ordered treatment. This is a program director who co-exercised state authority over a parolee's liberty, collaborated with state agents in retaliatory decision-making, and contributed to official records used to deprive Plaintiff of his freedom to terminate supervision. That is joint action under § 1983.

2. Rawson v. Recovery Innovations Controls This Analysis.

The controlling authority is Rawson v. Recovery Innovations, Inc., 975 F.3d 742 (9th Cir. 2020)—a case the motion conspicuously ignores. In Rawson, the Ninth Circuit held that a private contractor operating a mandatory reentry/mental-health program acts under color of state law when it "act[s] jointly with parole officials, exercise[s] authority over [the parolee's] program

participation, communicat[es] directly with parole agents regarding [the parolee's] conduct and compliance, and ma[kes] recommendations affecting [the parolee's] … status." 975 F.3d at 751–53 (emphasis added).

These are the exact facts pleaded here. The FAC alleges that Palacios "acted jointly with parole officials, exercised authority over Plaintiff's mandatory program participation, communicated directly with parole agents regarding Plaintiff's conduct and compliance, and made recommendations affecting Plaintiff's parole status." (FAC ¶ 10.) The FAC quotes Rawson by name and tracks its legal standard with precision. The motion offers no analysis of Rawson and no basis to distinguish it.

Defendant's reliance on Reinhardt v. Kopcow, 65 F. Supp. 3d 1164 (D. Colo. 2014)—a non-binding, out-of-circuit district court decision—is misplaced and inapplicable. In Reinhardt, the treatment providers' recommendation contradicted the probation department's restriction; the court found no joint action precisely because the providers disagreed with and were constrained by the state's decision. Here, the opposite is true: Palacios affirmatively joined and implemented the retaliatory decisions. (FAC ¶¶ 24–25, 29, 36.) That distinction is dispositive. Reinhardt does not support dismissal—it confirms that state actor status follows when a private party acts in concert with, rather than against, state decisions.

3. The Government Nexus Test Is Independently Satisfied.

The nexus test asks whether "there is such a close nexus between the State and the challenged action" that seemingly private conduct may be "fairly treated as that of the State itself." Kirtley v. Rainey, 326 F.3d 1088, 1095 (9th Cir. 2003).

The HOPE Program is not a voluntary wellness center. It is a state-mandated reentry program, attendance at which is an enforceable condition of Plaintiff's CDCR parole. (FAC ¶¶ 8,

12.) Non-compliance constitutes a parole violation. The state's authority over Plaintiff runs through HOPE. Palacios, as Director, wielded program authority that functioned directly as an extension of CDCR supervision. When she labeled Plaintiff "disruptive," that label migrated into official parole reports. When she labeled him a "ringleader," that characterization was incorporated into the Discharge Review that prolonged his supervision. When she revoked the grace period in coordination with Derrick, that decision triggered parole-violation exposure. The nexus between Palacios's conduct and state action is not attenuated—it is immediate and structural.

Even under the public function test—which Defendant's motion raises but which is the weakest ground for dismissal here—supervising and determining the conditions of a mandatory parole program is a core governmental function that the state cannot delegate away without retaining constitutional responsibility. West v. Atkins, 487 U.S. 42, 56 (1988) ("[I]t is the state's obligation to provide" constitutionally adequate services; delegation to private party does not extinguish that obligation).

B. PLAINTIFF ADEQUATELY PLEADS A FIRST AMENDMENT RETALIATION CLAIM AGAINST PALACIOS.

To state a First Amendment retaliation claim in the parole context, a plaintiff must allege: (1) engagement in protected conduct; (2) an adverse action taken because of that conduct; (3) causation; (4) a chilling effect on a person of ordinary firmness; and (5) absence of a legitimate penological justification. Rhodes v. Robinson, 408 F.3d 559, 567–68 (9th Cir. 2005). The FAC alleges all five elements with specificity. Defendant's contrary assertions are flatly contradicted by the FAC's express allegations.

1. Plaintiff Pled Specific Protected Speech.

The motion asserts there is "no description or identification of specific speech" by Plaintiff. That characterization is incorrect and contradicted by the face of the FAC. The Court can verify this by reading paragraphs 13 through 15 and 39 through 40.

The FAC alleges Plaintiff voiced specific complaints in HOPE group sessions, including: (1) disrespectful treatment by program staff and other participants; (2) the fact that he had remained in the program for approximately five years despite completing all assigned homework multiple times; (3) homework routinely lost by program staff; and (4) group resets caused by repeated clinician turnover. (FAC ¶¶ 13–14.) These complaints "concerned his treatment by state actors" and "addressed matters of public concern." (FAC ¶ 13.) Plaintiff also directly asserted his right to freedom of speech to Agent Derrick, triggering the explicit threat: "You do not have freedom of speech. Not in HOPE group you don't." (FAC ¶ 18.) Plaintiff further prepared—but was chilled from submitting—a CDCR Form 22 grievance requesting a new parole agent. (FAC ¶¶ 39–40.)

These are not vague or conclusory descriptions. Complaints about mistreatment by government officials in a mandatory program are the heartland of First Amendment protection. Entler v. Gregoire, 872 F.3d 1031, 1039–40 (9th Cir. 2017) (threats to file grievances are protected); Watison v. Carter, 668 F.3d 1108, 1114 (9th Cir. 2012) (filing a grievance is protected conduct). Whether the speech was "disruptive" within HOPE's internal rubric is a factual dispute that cannot be resolved on a 12(b)(6) motion.

The motion cites Lockett v. Suardini, 526 F.3d 866 (6th Cir. 2008)—out-of-circuit, decided on a different record involving pure insubordination during a formal prison disciplinary hearing. Plaintiff's speech here involved complaints about systemic failures in the administration of a state correctional reentry program. Speech about the operation and fairness of a government-mandated reentry program implicates public safety, recidivism outcomes, and the use of taxpayer resources—paradigmatic matters of public concern. See Connick v. Myers, 461 U.S.

138, 146 (1983); Rankin v. McPherson, 483 U.S. 378, 384 (1987). Moreover, Agent Derrick's explicit threat—"You do not have freedom of speech. Not in HOPE group you don't"—and Palacios's "ringleader" label demonstrate that Defendants targeted Plaintiff for the fact of his speaking and its persuasive effect on others, not its specific content. When the government retaliates against speech qua speech in order to suppress it, the public concern threshold is less stringent. See Gibson v. Office of the Att'y Gen., 561 F.3d 920, 925 (9th Cir. 2009).

2. Palacios's Personal Participation in Adverse Actions Is Expressly Pled.

The motion argues Palacios did not personally participate in any constitutional deprivation. Again, this assertion is directly contradicted by the FAC. The Court need only read paragraphs 24–25, 29, and 35–36:

- Palacios jointly conferred with Derrick and participated in the joint decision to revoke Plaintiff's grace period and deny his employment accommodation. (FAC ¶¶ 24–25.)

- Palacios labeled Plaintiff a "ringleader" at the CTM, explicitly tying his constitutionally protected speech—its persuasive effect on other participants—to adverse action. (FAC ¶ 29.)

- Palacios provided input characterizing Plaintiff as "disruptive" and a "ringleader" for the Discharge Review Report that recommended continued retention on parole. (FAC ¶¶ 35–36.)

- Palacios granted reduced attendance to another parolee during the same period while knowingly withholding the same accommodation from Plaintiff. (FAC ¶ 51.)

- Palacios personally facilitated Plaintiff's HOPE group sessions after his clinician

resigned, confirmed the chilling of his speech, and communicated that she was influencing his parole status. (FAC ¶¶ 44–46.)

Each is a discrete, specifically-pled adverse action in which Palacios personally participated. Personal participation under § 1983 includes direct involvement, setting in motion a series of acts by others, or knowingly refusing to terminate unconstitutional conduct. Johnson v. Duffy, 588 F.2d at 743–44. Every prong is satisfied here.

3. Causation Is Adequately and Independently Pled on Three Grounds.

The motion argues there is no causal nexus. The FAC pleads three independent, overlapping bases for causation, any one of which suffices at the pleading stage:

Direct Evidence of Retaliatory Motive: Derrick's explicit statement—"You do not have freedom of speech. Not in HOPE group you don't"—establishes the retaliatory environment in which Palacios operated and to which she contributed. (FAC ¶ 18.) Palacios's own characterization of Plaintiff as a "ringleader" because his speech encouraged others to speak provides separate, independent direct evidence of her retaliatory intent, targeting Plaintiff specifically for the persuasive quality of his protected expression. (FAC ¶ 29.) Direct evidence of retaliatory intent, including labeling a person's speech as grounds for adverse action, is sufficient to establish causation at the pleading stage. Sampson v. County of Los Angeles, 974 F.3d 1012, 1020 (9th Cir. 2020).

Temporal Proximity: Plaintiff engaged in protected expression in 2024; adverse actions—grace period revocation, accommodation denial, PACT meeting compulsion, escalated supervision to twice-monthly, new parole conditions, and the biased Discharge Review Report—all followed sequentially in 2025. Temporal proximity between protected activity and adverse action independently supports retaliatory causation. Pratt v.

Rowland, 65 F.3d 802, 808 (9th Cir. 1995).

Pretext: Palacios granted a reduced attendance schedule to another parolee in the same program during the same period while denying Plaintiff's comparable employment-training request. (FAC ¶ 51.) Such selective enforcement of identical policies as between similarly situated individuals constitutes powerful evidence of pretextual justification and retaliatory motive. Brodheim v. Cry, 584 F.3d 1262, 1271 (9th Cir. 2009). At the pleading stage, a "substantial or motivating factor" showing is sufficient—but-for causation is not required. Soranno's Gasco, Inc. v. Morgan, 874 F.2d 1310, 1314 (9th Cir. 1989).

4. The Chilling Effect Is Concrete, Specific, and Corroborated.

The FAC documents the chilling effect with unusual specificity: Plaintiff abandoned a written Form 22 grievance due to fear when confronted by Derrick (FAC ¶ 40); experienced increased heart rate, visibly shaking hands, and acute anxiety during parole visits (FAC ¶ 41); curtailed participation in HOPE group sessions (FAC ¶¶ 44–45); and provided shorter, more compliant answers during parole interactions (FAC ¶ 42). Critically, the chilling was independently observed and confirmed by Palacios herself, by a subsequent clinician (Ms. Jackie), and by other group participants. (FAC ¶ 46.) These are specific, witnessed, and documented behavioral changes directly caused by fear of retaliation. Brodheim, 584 F.3d at 1269 (chilling effect requires only that adverse action would deter a person of ordinary firmness—the threshold is not high).

C. PLAINTIFF'S EQUAL PROTECTION CLAIM AGAINST PALACIOS IS INDEPENDENTLY VIABLE AND UNCONTESTED.

Defendant has not substantively challenged the equal protection claim in the motion. The

MTD mentions the equal-protection allegations in passing in its Statement of Facts but advances no legal argument addressing Palacios's personal role. That silence leaves the claim unopposed.

In any event, the claim is well-pled. The FAC alleges that Palacios personally exercised discretion to grant a reduced attendance schedule to another parolee in the same program while denying Plaintiff's identical request for a comparable employment accommodation. (FAC ¶ 51.) This occurred within a broader pattern of race-based disparate treatment corroborated by sworn declarations executed under 28 U.S.C. § 1746 from two named comparators—a white parolee who received leniency and a Black parolee who received hostility—both of whom are willing to testify under oath. (FAC ¶¶ 52–60.)

To state an equal protection claim, Plaintiff must allege intentional or purposeful discrimination. Village of Arlington Heights v. Metro. Hous. Dev. Corp., 429 U.S. 252, 265–68 (1977). The FAC identifies specific comparators, describes differential treatment in concrete detail, alleges discriminatory intent, and provides structural corroboration. These allegations satisfy Arlington Heights's purposeful-discrimination standard at the pleading stage. Furnace v. Sullivan, 705 F.3d 1021, 1030 (9th Cir. 2013); Serrano v. Francis, 345 F.3d 1071, 1077 (9th Cir. 2003).

D. PLAINTIFF'S SUBSTANTIVE DUE PROCESS CLAIM IS PLED IN THE ALTERNATIVE; IF DUPLICATIVE, PLAINTIFF DOES NOT OPPOSE DISMISSAL WITH PREJUDICE.

Plaintiff acknowledges the Graham v. Connor / Albright v. Oliver rule: where a more specific constitutional amendment covers the alleged conduct, substantive due process yields. 490 U.S. 386 (1989); 510 U.S. 266 (1994). The FAC pleads Count III "alternatively and independently" of the First Amendment claim pursuant to Fed. R. Civ. P. 8(d)(2). (FAC ¶ 76.)

Should the Court find Count III duplicative of Count I, Plaintiff does not oppose dismissal

of Count III with prejudice. Plaintiff's First and Fourteenth Amendment equal protection claims (Counts I and II) provide full relief and are the operative claims. Plaintiff reserves all rights with respect to those counts.

Plaintiff notes only that, were Count III to proceed independently, the FAC's allegations of arbitrary revocation of standard grace periods, denial of employment accommodation contrary to stated rehabilitative goals, and escalated supervision imposed without any new violation would satisfy the "shocks the conscience" standard applicable in non-emergency deliberate-indifference contexts. Cnty. of Sacramento v. Lewis, 523 U.S. 833, 846–47 (1998); Porter v. Osborn, 546 F.3d 1131, 1137 (9th Cir. 2008). But Plaintiff does not require the Court to reach that question.

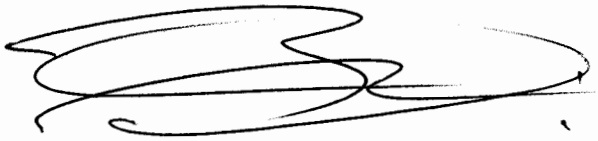
IV. CONCLUSION

The FAC adequately pleads that Palacios acted under color of state law as a joint actor with CDCR under controlling Ninth Circuit authority, personally participated in multiple specific adverse actions, and targeted Plaintiff's constitutionally protected speech in a racially discriminatory manner. Every argument in the motion either ignores Rawson v. Recovery Innovations—the controlling case—mischaracterizes the FAC's express allegations, or asks the Court to resolve factual disputes that are categorically impermissible on a Rule 12(b)(6) motion.

Plaintiff respectfully requests that the Court DENY Defendant Palacios's Motion to Dismiss in its entirety. As to Count III, if the Court finds it duplicative, dismissal with prejudice is acceptable to Plaintiff.

Dated: April 7, 2026

Respectfully submitted,



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CERTIFICATE OF SERVICE

Case Name: Brendan Ngehsi Newanforbi v. Agent A. Derrick, et al. No. 2:26-cv-00004-DJC-JDP(PS)

I hereby certify that on April 7, 2026, I served a true and correct copy of the following document(s):

PLAINTIFF'S OPPOSITION TO DEFENDANT KATIE PALACIOS' NOTICE OF MOTION AND MOTION TO DISMISS PLAINTIFF'S FIRST AMENDED COMPLAINT; MEMORANDUM OF POINTS AND AUTHORITIES IN SUPPORT THEREOF

upon the following counsel of record for Defendant Katie Palacios via electronic mail, to which counsel has consented through their Electronic Service Notice communicated in prior correspondence:

Kim Schmitt, Legal Secretary (kschmitt@sims-law.net)
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All of the foregoing individuals are staff of Sims, Lawrence & Broghammer, LLP, 1478 Stone Point Drive, Suite 450, Roseville, CA 95661, counsel of record for Defendant Katie Palacios in the above-captioned action. Service by email was transmitted to each of the above addresses simultaneously on April 7, 2026.

I declare under penalty of perjury under the laws of the United States of America that the foregoing is true and correct and that this declaration was executed on April 7, 2026, at Stockton, California.



Brendan Ngehsi Newanforbi
Plaintiff, Pro Se

Signature